

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN BOLIVIA

Complete Community Opposition How-To

*This guide uses the Bolivian terms and bodies you'll actually run into — the **ficha ambiental** and the **EEIA**, the **licencia ambiental**, **consulta previa**, the **acción popular** and the **Plurinational Constitutional Tribunal**, the rights of the **Madre Tierra** — and explains each in plain words the first time. Bolivia's constitution is unusually strong on Indigenous and nature rights, and this guide is built around using them.*

INTRODUCTION & FRAMEWORK

In August 2011, about a thousand lowland Indigenous people — Chimane, Yuracaré, and Mojeño-Trinitario — set out from the Amazon town of Trinidad on a **600-kilometre march to La Paz** to stop a highway the government wanted to drive straight through their homeland: the **TIPNIS**, the Isiboro Sécure National Park and Indigenous Territory, a place of extraordinary biodiversity and the ancestral land of over twelve thousand people. Partway, the march was **violently attacked by police** — dozens injured, the country horrified. And that horror changed everything: the outrage forced President Morales to sign **Law 180 in October 2011**, banning the road and declaring the TIPNIS protected and "intangible." An Indigenous march had made the state reverse a flagship project. That is real power, and it is Bolivian.

The TIPNIS marchers won with their feet and the outrage a police attack caused — but behind that stands a toolkit that is, on paper, stronger than almost anywhere, and the gap between the paper and the practice is the whole task. The **2009 plurinational Constitution** recognises extensive **rights of Indigenous peoples** over their territories, the principle of **Vivir Bien (Living Well)**, and — through the **Law of Rights of Mother Earth** — the **rights of the Madre Tierra** herself. It provides **prior consultation (consulta previa)** and an **environmental-licence system**. And a fast, powerful constitutional tool, the **acción popular**, defends collective and environmental rights before the **Plurinational Constitutional Tribunal**, which has struck down mining authorisations for skipping consultation and even recognised a river as a subject of rights. But these tools have real limits, and this guide states them plainly — and the truest lesson TIPNIS teaches is that **a political win can be reversed**. The government soon ran a "consultation" that critics said came too late and was no longer prior; in 2017 it **repealed Law 180** and revived the road; and the fight continues to this day. Bolivia's constitution is one of the strongest in the world on paper, but a state that depends on extraction and pushes flagship projects hard will reverse a loss, run consultation as a formality, and grind on. So a Bolivian victory has to be defended, and the fight often shifts ground — closing the gap between that paper and the practice is the whole task.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Bolivian project needs its **environmental licence** (resting on an EEIA); on Indigenous land it needs **consulta previa**; it must respect the constitutional rights of Indigenous peoples and the Madre Tierra, defensible by **acción popular** before the TCP; and — as at TIPNIS — it can be met by mass Indigenous mobilisation. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — with care for safety:

- **If it's on Indigenous land and consultation was skipped, the acción popular is a real lever** — the TCP has struck authorisations for exactly that.
- **If it harms nature, the rights of the Madre Tierra and the environmental licence are grounds** — powerful on paper; use them.
- **If it's a flagship, state-backed project, an outright stop is hard, and a win can be reversed** — TIPNIS shows both the power of the march and its reversal, so plan to defend a victory.
- **Consultation is a right, but not binding** — the state decides in the end, so pair it with mobilisation and legitimacy.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — consulta, the environmental licence, the acción popular, Indigenous and nature rights — and **run every front at once**, safely: the documents, the participation, the courts, the mobilisation, the press. That's how TIPNIS was, for a time, won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental licence (licencia ambiental)**, granted on the basis of a **ficha ambiental** (screening) and, for the most damaging categories, a full **EEIA** (environmental impact study). Sector authorities grant mining, gas, and other rights. On Indigenous land, **consulta previa** engages the affected peoples. And the **Plurinational Constitutional Tribunal (TCP)**, through the acción popular, sits above them on rights. Know which decision you can contest — and remember the Indigenous-rights and Madre Tierra arguments run through all of them.

How a Project Moves — and Where You Jump In

The EEIA and participation. The developer prepares the EEIA; there's **public participation**. *Your opening* — *and it arms every later step*: take part, put your objections on the record, and insist the participation is genuine.

Consulta previa (on Indigenous land). Where Indigenous peoples are affected, consultation is required. *Your opening*: a project that skipped or faked it is on weak ground — even though consultation is not binding.

The licence. The authority grants the environmental licence. *Your opening*: a licence that skipped consultation or violates rights can be struck by an acción popular.

Construction. *Your opening*: the ongoing harm — and, as at TIPNIS, mass mobilisation.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure (TIPNIS's road was a Brazilian company financed by Brazil's development bank). **What it still needs** — the licence not final, consultation not done, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and foreign financiers with their own standards.

Who's Supposed to Be Watching

Each is an ally or an arena. The environmental authority grants and can be pressed on the licence. The **TCP**, via acción popular, defends Indigenous and environmental rights — the sharpest legal lever. The **Defensoría del Pueblo** (Ombudsman) investigates. International bodies like the **Inter-American Commission on Human Rights (IACHR)** have heard Bolivian Indigenous testimony (including on TIPNIS). And Bolivia's **powerful Indigenous movement, its confederations (CIDOB, CONAMAQ), and its press** are the forces that reach furthest — the combination that marched TIPNIS to a protection law.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether Indigenous rights and consultation are engaged, whether the licence skipped a step, how strong the mobilisation is, and how set the state is on a flagship project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Participation / objections in the EEIA	15–35%	during assessment	low	On record; conditions or a redo
Acción popular (consultation / rights)	25–50%	months–2 yr	low	Authorisation struck for skipped consulta
Madre Tierra / environmental-rights ground	20–45%	varies	low	Project blocked or conditioned on nature rights
Consulta previa (skipped/faked)	20–45%	varies	low	Project stalled pending genuine consultation
Mass Indigenous mobilisation (the march)	30–55%	months–yr	low but risky	State retreat / protection law (TIPNIS)
International (IACHR) attention	20–45%	months–yr	low	Pressure; scrutiny
Everything together (Indigenous rights, world watching)	35–60%	1–4 yr	low–mod	Struck, stalled, protected, delayed
Everything together (flagship, state-backed)	15–40%	1–4 yr	low–mod	Delayed, exposed — and guard the win

The levers that move the needle most are the **acción popular** (on skipped consultation), the **rights of the Madre Tierra**, and — TIPNIS's lesson — **mass Indigenous mobilisation**, backed by international attention. TIPNIS shows the ceiling (a march that won a protection law) and the honest limit (that law repealed six years later). So aim to win *and* defend, and count a struck authorisation, forced consultation, a protection law, delay, and exposure as wins.

On cost and safety: participating, organising, and the acción popular are low-cost, and Indigenous confederations bring reach and standing. But the state has repressed marches (the police attack on the TIPNIS march injured dozens) — so protect the vulnerable, keep mobilisation disciplined, and route risk through lawyers, the Defensoría, and international allies.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this licence, this skipped consulta, this territory — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the footprint and lay it over **Indigenous territories (TIOC)** and national parks, rivers and water, forest, farmland, communities. **Indigenous territory and protected areas are your sharpest levers**, so this map is your most important document — TIPNIS turned on a park that is also an Indigenous homeland.
- 3. What stage is it at, and what's the next deadline?** Is the EEIA in participation? Is consulta due? Has the licence issued (opening the acción popular)? These openings are time-bound.
- 4. What does it still need that it lacks?** A licence not final, consultation not done, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbouring communities, the Indigenous confederations (CIDOB, CONAMAQ), environmental groups. TIPNIS united lowland and highland Indigenous peoples.

What this looks like in real life. A community learns a road, mine, or dam is planned through its Indigenous territory and a protected area, its consulta a formality. The five questions yield: a company (and foreign financier) behind it; a site on Indigenous land and a park (the sharp levers); an EEIA and a token consulta; a project still needing its licence; and a coalition of communities and confederations. That's the TIPNIS pattern — press the skipped consultation and the rights of the territory, bring the acción popular, and — if it comes to it — march.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decisions rest on — the ficha ambiental, the EEIA, the licence and conditions, the consultation records, the water and forest studies. Then read them hard for flaws — an understated impact, an ignored alternative, a consultation skipped or run after the fact (a TIPNIS flaw), a participation that never genuinely happened.

Layer two: the ground truth. Dated, located photographs and video of the site, the territory, the rivers, the forest — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of territory and nature. Lay the project over the Indigenous territories, protected areas, rivers, and forest, so each lever — Indigenous rights, the Madre Tierra — is visible. Walking into the TCP with the licence, the skipped consulta, and that map is what makes it act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The ficha ambiental, the EEIA, the licence and conditions, the consultation records, the water and forest studies** — from the environmental and sector authorities (8A).
- **Indigenous territory documentation** — from the community's structures and confederations, to establish the TIOC and consultation rights.

- **Ownership and financing** — company and financier records.
- **The territory-and-nature map** — Indigenous territories, protected areas, rivers, and forest, laid over the site.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Bolivia's Indigenous movement is one of the most powerful in the Americas. Build your coalition in four moves — and safely.

Start with a tight core. The community members most affected, the people who know the territory and rivers, a few tireless organisers, and respected authorities.

Centre Indigenous leadership and the confederations. Where Indigenous territory is engaged, the peoples and their confederations (CIDOB, CONAMAQ) hold the strongest ground and the greatest reach — the march that won TIPNIS's protection law. Build the campaign around supporting that leadership, at their direction.

Widen the circle. Pull in neighbouring communities, environmental groups, and the wider public. Hold meetings where people see the evidence — the map of the project over the territory.

Bring in the lawyers and international allies — early, and safely. Public-interest lawyers who run acción popular cases, and international networks (like those that took TIPNIS to the IACHR). Keep mobilisation disciplined and non-violent, and be ready — the state has repressed marches.

Build to last, and defend the win. Bolivian fights run for years, and — the TIPNIS lesson — a win can be reversed. Build clear roles, a secure shared archive, a way to decide together, a plan for the toll, and a plan to guard a victory the state may try to reverse.

STEP 4: LEGAL CHALLENGES, CONSULTA & THE ACCIÓN POPULAR

Law is a real Bolivian lever — the constitution is unusually strong — but pair it with mobilisation and legitimacy, because the practice lags the paper.

Participate and Insist on Genuine Consulta First

Everything downstream is stronger if you took part in the EEIA and, on Indigenous land, insisted the **consulta previa** was genuine and truly *prior*. It is **not binding** — the state decides in the end — but a skipped or faked consultation is a defect, and the record you build is the basis of the acción popular.

The Acción Popular and the TCP — the Sharpest Legal Lever

The core route is the **acción popular** — a fast constitutional action, open to anyone, to defend **collective and environmental rights** — before the **Plurinational Constitutional Tribunal (TCP)**. This is Bolivia's sharpest legal tool: the TCP has **struck down mining authorisations for skipping consultation** and even **recognised a river as a subject of rights**. Frame the harm as a violation of Indigenous rights, the right to a healthy environment, and the rights of the Madre Tierra, and bring the acción popular.

Indigenous Rights, the Madre Tierra, and International Bodies

The **2009 Constitution's** Indigenous-territory rights and **Vivir Bien**, and the **Law of Rights of Mother Earth**, are real grounds — use them, on paper strong. And where the domestic system fails, the **Inter-American Commission on Human Rights (IACHR)** has heard Bolivian Indigenous testimony (including on TIPNIS) and is an external lever.

The Honest Limits

Straight talk: the acción popular and the constitution are powerful on paper, but consultation is not binding, enforcement is weak, the state pushes flagship projects hard, and — the TIPNIS lesson — a win can be reversed and marches repressed. So use the strong tools — the participation, consulta, the acción popular, the Madre Tierra rights, the IACHR — but pair them with mass mobilisation and legitimacy, protect your people, plan to defend a win, and count a struck authorisation, forced consultation, a protection law, delay, and exposure as wins alongside an outright stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A skipped consulta becomes a struck licence. Not "we don't want the road" but *"this affects our Indigenous territory and consultation was skipped — grounds for the TCP to strike the authorisation by acción popular."*

Nature becomes a rights-holder. *"This violates the rights of the Madre Tierra and our right to a healthy environment."*

A territory becomes a homeland. *"This is a protected park and our ancestral homeland — as the TIPNIS is."*

The harm becomes a public and international story. *"The forest, the rivers, the homeland our peoples have always known — for a project decided over our heads."*

Match it to the venue: the objections to the environmental authority; the skipped consulta and rights violations to the TCP via acción popular; the human and the territory to the press and the IACHR.

STEP 5: MEDIA STRATEGY

In Bolivia, the Indigenous movement and public attention are powerful levers — TIPNIS became a national and international cause, and the outrage at the police attack forced a protection law. A press and international networks make the media front central, handled with care where repression is a risk.

Lead with people and place, not procedure. Not "the consultation was defective" but "the forest, the rivers, the homeland our peoples have always known — for a project decided over our heads." Use your strongest material: dated photographs, the map of the project over the territory, Indigenous voices, and — carefully — any repression documented.

Work several audiences at once. Local and national press build political pressure; the Indigenous confederations amplify; international media and the IACHR reach beyond a state that may repress at home. Make it easy: captioned photos, accurate summaries, a map, strong voices — and let Indigenous peoples lead the telling of their own story.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — keep mobilisation disciplined, and document any repression safely.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies; and protect anyone at risk.

8A — Request for the licence and assessment (to the environmental authority).

Subject: Solicitud de información ambiental — [proyecto].

"We, residents of [place], request the ficha ambiental, the EEIA, the environmental licence and its conditions, and the consultation records for [project] at [location]. [Contact.]"

8B — Objection / demand for genuine consulta.

Subject: Observaciones y consulta previa — [proyecto].

"We, residents of [place] and [the Indigenous people/territory], object to [project]: [the EEIA understates the impact; consultation was skipped or came too late]. We require genuine, prior consultation, and ask that the licence be refused. [Attach evidence.]"

8C — Acción popular (to a lawyer).

Subject: Acción popular — [proyecto].

"We instruct you to bring an acción popular before the TCP because [project] violates our collective and environmental rights and the rights of the Madre Tierra: [consultation was skipped / a fundamental right is threatened]. We ask that the authorisation be struck. [Attach evidence.]"

8D — To an Indigenous confederation / international network.

Subject: Request for support — [proyecto] en [lugar].

"Our community and territory face [project], which threatens [our land / rivers / forest] and skipped our consultation. We've gathered [the licence, the record, photographs] and ask for your support and, where fitting, to take our case to the IACHR — as partners. [Contact and evidence summary.]"

8E — To the Defensoría del Pueblo.

Subject: Queja — [proyecto] en [lugar].

"We ask you to investigate [project], which [skipped consultation / threatens our rights and territory], and [any repression of community members]. [Attach evidence.]"

8F — To a financier or foreign bank.

Subject: Environmental, rights, and legal risk in [project].

"We understand your institution may be financing [project] at [location], which [proceeds without genuine consultation / faces an acción popular]. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [territory / forest / river] from [project].

"For generations the peoples of [place] have lived from [the territory / the forest] at [location]. Now [project] threatens it — decided over our heads, without our consultation. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community (safely).

Subject: We can protect our land — here's how.

"[Project] threatens [our territory / forest / rivers]. At TIPNIS, an Indigenous march made the state reverse a flagship road and pass a protection law. With consulta, the acción popular, the rights of the Madre Tierra, and our unity behind us, we have a real chance — and we must be ready to defend a win. Please join us — disciplined, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and its footprint, and look for the Indigenous-territory and protected-area levers.** These are your sharpest.
2. **Take part and demand genuine, prior consulta (8B); put your objections on the record.**
3. **Request the licence and assessment (8A), and look for a skipped or late consultation.**
4. **Photograph everything, with dates and places, safely.**
5. **Bring an acción popular before the TCP (8C) with a lawyer, on the skipped consulta and the rights of the Madre Tierra.**
6. **Centre the confederations, involve the Defensoría and — if fitting — the IACHR, and mobilise (8D/8E/8H) — disciplined and safe.**

Even lean, those six use your rights, build the record, hit the acción popular, and connect you to a powerful movement.

WHEN THE SYSTEM IS TILTED

Bolivia's tools are real on paper, but the practice is tilted, and you must plan for it.

When it's a flagship, state-backed project. The state pushes these hard and denounces opponents. Don't fold: use the acción popular and the rights of the Madre Tierra, centre the confederations, mobilise, and take it international — and make the state's reversal of its own protections a public cost.

When consulta is a formality. Consultation is a right, but not binding, and is often run late as a box-tick. Insist it be genuinely prior; a skipped or faked consulta is a ground.

When a win is reversed. This is the TIPNIS lesson: a protection law can be repealed. Guard your win — keep the movement and the vigilance alive, and be ready to litigate and mobilise again.

When marches are repressed. The state has attacked marches. Keep mobilisation disciplined and non-violent, document repression safely, protect the vulnerable, and use international attention as a shield.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Bolivia has documented problems with the capture of flagship projects by political and extractive interests, so this matters.

How to spot it. Licences against the evidence; an EEIA written for the proponent; a consultation skipped or manufactured; contracts steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Contraloría General** examines public money. The **Fiscalía** handles graft. The **Defensoría del Pueblo** investigates. The **TCP** can strike a tainted authorisation, and the **IACHR** is an external check. And Bolivia's **press and Indigenous organisations** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Contraloría, the Fiscalía, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the mobilisation.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your proof; pinning down the territory and nature levers aims it; centring the confederations builds the muscle; the acción popular presses the case; mobilisation and the media raise the cost. Together they multiply. One at a time, they stall — and remember to defend the win.

Early on (weeks 1–8): nail down the project, its footprint, and any Indigenous territory or protected area; take part and demand genuine consulta; request the records; photograph the baseline; centre the confederations and get a lawyer.

In the thick of it (months–years): bring an acción popular before the TCP on the skipped consulta and the Madre Tierra rights; involve the Defensoría and, if fitting, the IACHR; mobilise and open the media front.

The long haul (years): carry the case through the TCP; keep the movement alive; hold the line for a struck authorisation, forced consultation, a protection law, delay, or an outright stop — and defend the win against reversal.

FINAL ASSESSMENT

Stopping a destructive project in Bolivia can be done — an Indigenous march made the state reverse a flagship highway and pass a law protecting the TIPNIS. Hold both truths, and never forget the cost or the reversal: the march was attacked, and the protection law was later repealed. Bolivia's tools are real and, on paper, among the strongest anywhere: a plurinational constitution rich in Indigenous-territory rights and Vivir Bien; the rights of the Madre Tierra; consulta previa; and a fast acción popular before a TCP that has struck authorisations for skipping consultation and recognised a river as a rights-holder. And the constraints are real: consultation that is not binding, weak enforcement, a state that pushes flagship projects and reverses its own protections, and marches that have been repressed.

Here's the discipline that wins, and it stays disciplined and safe. Find the Indigenous territory and the protected area, and the flaw — the skipped or late consulta — and pry loose the record. Take part and demand genuine, prior consultation. Bring an acción popular before the TCP on the rights of your peoples and the Madre Tierra. Centre the confederations, take it international where the state fails, mobilise with discipline — and be ready to defend a win the state may reverse. Count a struck authorisation, forced consultation, a protection law, delay, and exposure as wins alongside an outright stop. That's what TIPNIS did — the march, the confederations, and the rights of the land together — and its reversal is the reason a Bolivian victory must be guarded. So can you.